SETTLEMENT DEED

The under-mentioned Settlement Deed is made on this----------at ----------between the following family members of Sh (Late) Jiv Nath Sharma.

1. **Arun Kumar Sharma**
2. **Ashwani Magotra**
3. **Madhu Sharma**
4. **Subhash Chander Sharma**
5. **Surinder Kumar Sharma**

The properties of our father Sh (Late) Jiv Nath Sharma which are subject matter of the said Settlement Deed are as under:-

1. **House No _____ at Gali Kumharan, Pir Mitha, Jammu measuring _____ marlas / sq ft (original layout sketch of the property enclosed).**

2. **Agricultural land measuring 10 kanal 15 marla at village Gangwan in Marh Tehsil, Jammu district (original layout sketch of the property enclosed).**

As part of the Settlement Deed the above-mentioned properties of our father Sh (Late) Jiv Nath Sharma shall be partitioned as under:-

1. **House No _____ at Gali Kumharan, Pir Mitha, Jammu measuring _____ Marlas / sq ft, whose original layout sketch / map is enclosed** shall be partitioned equally (as per partition drawing / sketch enclosed) among the under mentioned family members. Since Ashwani Magotra has already received his share of the said property as part of the memorandum of partition dated 27 Mar 2000 during the lifetime of our father Sh (Late) Jiv Nath Sharma, the said house shall be partitioned into three equal portions among the under-mentioned family members as exhibited in sketch / layout / map of the property.

1.1 Arun Kumar Sharma, Subhash Chander Sharma and Surinder Kumar Sharma all sons of Sh (Late) Jiv Nath Sharma.

2. The agricultural land measuring 10 kanals and 15 marlas at village Gangwan in Marh Tehsil, Jammu district (original layout sketch of the property enclosed) shall be partitioned equally (as per Sketch / map enclosed) into the following family members of Sh (Late) Jiv Nath Sharma.

2.1 Arun Kumar Sharma, Ashwani Magotra, Subash Chander Sharma and Surinder Kumar Sharma all sons of Sh (Late) Jiv Nath Sharma.

3. **The under mentioned points shall be final and binding on all parties with respect to both properties as mentioned in this Settlement Deed:-**

3.1 That they will have **no objection to Revenue Department entering the mutation in respect to the House at Gali Kumharan, Pir Mitha Jammu and the land at village Gangwan in Marh tehsil, Jammu**, as per above mentioned Settlement Deed, i.e. equal partition of the said ancestral house and equal partition as per size and measurement of the said land in favour of property holders as already mentioned above.

3.2. That they will have **no objection to the Revenue Department to carry out necessary corrections in the name of any of the party or parties to this Settlement Deed earlier entered in the mutation** in respect to the above-mentioned house at Gali Kumharan Pir Mitha Jammu as well as the agricultural land at Gangwan, Marh tehsil, Jammu.

3.3 The parties to this Family settlement namely Sh. Ashwani Magotra and Sh. Subash Chander Sharma will withdraw the suit for partition after registration of the Settlement Deed which they have filed against Sh. Arun Kumar Sharma and which suit is pending disposal before the Court of the City Judge, Jammu only after the above-mentioned properties have been legally transferred to the new beneficiaries and not just mere registration of the said Settlement Deed to ensure timely transfer and peaceful possession amongst all legal heirs.

3.4. The parties to this Family Settlement Deed, Smt Janak Kumari Sharma, wife of Sh (Late) Jiv Nath Sharma and Smt Madhu Sharma w/o Sh Chander Shekhar Sharma, will withdraw the suit after registration of the Settlement Seed for which they have filed against Sh. Arun Kumar Sharma & Ors and which is pending disposal before the Court of the Additional District Judge, Jammu only after the above-mentioned properties have been legally transferred to the new beneficiaries and not

just mere registration of the said Settlement Deed to ensure timely transfer and peaceful possession amongst all legal heirs.

4. Now this Settlement deed witnesses that in pursuant to the agreement for family settlement and in consideration of the settlement arrived at between the parties is hereunder, the parties hereby agree with each other that they will observe, perform and convene the terms and conditions stated here in above.

5. All the conditions of this agreement have been fully explained to all the parties, who are the signatories to this agreement for family settlement and the said signatories have in consultation fully examined and considered the said terms and conditions and have given their free consent at their will without any force, coercion and / or inducement.

6. That the present agreement as per the stated Settlement Deed be considered as final and conclusive and shall not be altered or changed at any subsequent stage of the settlement. All the parties of the present agreement for family settlement shall be bound with the terms of the present Settlement agreement and shall adhere to the respective shares.

7. That pursuant to the present settlement, this Settlement deed shall be registered within a period of sixty (60) days including legal transfer of share of properties to the new beneficiaries as agreed upon under this Settlement for which the party (s) undertake to present themselves for registration of the present Settlement agreement before the authorities concerned. Any delay in getting the Settlement Deed registered before the authorities beyond a period of sixty days will result in rendering this Settlement Deed null and void.

8. That the present Settlement deed will have a legal force and shall be presented, forwarded before the Authorities concerned for the transfer of the respective shares of properties between the parties. Should any party or parties require at any stage, the parties to the present Settlement agreement shall be bound to issue NOC and execute other documents that may be required with regard to the mutation of the properties. As part of this Settlement Deed, any party or parties willing to dispose off their property by way of selling or lease including renting it shall be as per the sole discretion of the owner of the property and no other party or parties including legal heirs shall have any kind of objection to it. The party (s) to this Settlement Deed including their legal heirs shall have no entitlement to HAQ SHUFA in case

any party (s) decide to dispose off their property in part or full by selling, lease or renting at any stage and it shall be the sole decision and jurisdiction of the legal owner of the property to decide.

9. That the parties to the present settlement shall voluntarily at their will and consent execute the NOC with regards to the transfer of the property from their name to the beneficiary parties as per terms of the agreement under this Settlement Deed. They shall further be bound to present themselves, execute, sign any other document required at any other stage for the transfer of these properties.

10. That a beneficiary of the said property as a result of agreement under this Settlement deed, especially House No _____ at Gali Kumharan, Pir Mitha, Jammu and even the agricultural land at village Gangwan in Marh Tehsil Jammu, shall not be liable and responsible for the payment of any dues/claims against the property (s) such as unpaid/pending utility bills, issues pertaining to rent collected etc or any other kind of dues/claims pertaining to period prior to partition under this Settlement Deed that may arise in future or at any later stage. The liability/responsibility to settle/clear any such dues/claims whether notified or not or which may arise in future shall be the sole responsibility of the individual who controlled the above-mentioned property (s) till this Settlement Deed is registered and property partitioned and legally transferred to the new beneficiaries under this Settlement Deed. The individual beneficiary (s) of the partitioned property shall become liable for dues/claims against their property rising as a result of their usage of the property from the date of the partition and legal transfer of the share of the property (s) under this Settlement Deed but not of any previous time/period when the property had not been partitioned.

In witness where of the parties shall be unto set their hands.

Signatories:

Name
Fathers name
Address
Signature
Thumb impression